

Balancing Expertise: Designing an Eviction Defense Web Tool with Legal Experts and Tenants

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ABSTRACT

This paper investigates a long-term collaboration between students and service organizations in a context that relies heavily on experts while engaging with a marginalized and gate-kept community. The project was motivated by the Atlanta Volunteer Lawyers Foundation (AVLF)’s initiative to address the eviction crisis in a southern U.S. city by leveraging the organizational expertise, the knowledge of computing and design graduate students, and engagement with those who have faced eviction. This paper chronicles the journey of a student team as they adapt to changing personnel and project objectives. It analyzes the distinctive challenges and opportunities encountered during this collaboration and offers recommendations for effectively planning, designing, and developing products that require expert knowledge and for long-term student service projects.

CCS CONCEPTS

• **Human-centered computing** → **User studies; Usability testing; User centered design.**

KEYWORDS

User-centered design, design research, student projects, collaborative, methods, legal technology, eviction crisis, service organizations

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1 INTRODUCTION

Evictions are filed at a rate of four per minute in the United States. Eviction courts have been characterized by legal scholars as “eviction machines,” churning out orders evicting unrepresented tenants in favor of their represented landlords, regardless of the merits of the case. [14]

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Atlanta, known for its growing economy and diverse opportunities, faces a stark reality — it boasts one of the highest eviction rates in the U.S. [9]. With so many tenants facing eviction, it is essential they can find accessible information to help them navigate the legal process. Those confronted with eviction often find themselves in a complex legal maze, where advocating for their rights becomes daunting — a single missed deadline could lead to an early eviction without the opportunity to defend oneself in court. This lack of awareness perpetuates a cycle of vulnerability, exacerbating an already precarious situation. In the spring of 2021, we were approached by the Atlanta Volunteer Lawyers Foundation (AVLF), the largest non-profit legal provider in Atlanta and an advocate for those facing eviction. During the 2020 pandemic, Fulton County, the county that encompasses most of Atlanta, had a moratorium on evictions. As that moratorium was lifted, the number of evictions exploded. AVLF was struggling to assist with all the eviction cases brought to them and asked the last author of this paper if her class on community-engaged design could take on a project to develop a resource for those facing eviction. The class project resulted in a preliminary idea and sketches for real-time legal support for tenants, which could automate petition submission on their behalf.

This case study documents the project’s development over the two years after the class concluded. Building upon the initial ideas and relationship with the AVLF, our research and partnership evolved, as did our objectives and understanding of designing with organizations offering legal advice for a highly emotional juncture. Through field research with AVLF and their initiative, the Housing Court Assistance Center (HCAC), in collaboration with the Fulton County Magistrate Court, we identify sources of confusion for tenants facing eviction and pivotal opportunities for intervention. This lays the groundwork for a technology that seeks to empower tenants with essential legal insights, transforming their capacity to navigate these arduous circumstances. Understandably, the AVLF and HCAC had concerns about the legality of the information presented, on top of providing us access to vulnerable tenants facing eviction. Therefore, we found the partnership strained when seeking to balance the legal and language literacy of the tenants with AVLF and HCAC’s need for specific legal language. As the Human-Computer Interaction (HCI) field has grown to inform the design of legal and advocacy technology, the challenge of balancing technical and human considerations will persist. The methods presented in this paper may be useful to design researchers working at the intersection of law and advocacy.

2 BACKGROUND

There has been a recent shift in eviction research from focusing on the causes of evictions to exploring the eviction process as a

set of material technologies and practices that enact displacement of people from their homes [1]. Our interest in understanding and designing for the eviction space is to leverage the technical toolbox to empower tenants to navigate a set of causes and processes they have little power over.

While research has been conducted on developing technology to make courts and landlords more efficient, these efforts have demonstrated little or no concern for fairness [3, 10]. For example, within the ACM is a conference dedicated to Artificial Intelligence and Law, which features numerous papers exploring research on improving courtroom and lawyers efficacy through AI [11], not on providing fair outcomes. Specifically in the eviction processes, most computational contributions have focused on supporting landlords, such as providing them with third-party technology to screen potential tenants. This technology has long been criticized for creating greater bias in who qualifies for housing [15, 18].

More recently, we have seen a few projects that focus on tenants facing eviction. Some projects in HCI have explored the role of data in helping us better understand how evictions are enacted and patterns across regions. For example, Tran et al. [20] have explored how careful and participatory data practices can assist housing justice organizations in impacting policy. Tabar et al. have sought to help with the challenges of grasping the scope and occurrence of evictions using Machine Learning that predicts eviction filing hotspots in US counties [19]. Moreover, in a well-known project, several researchers have contributed to developing and studying the Anti-Eviction Mapping Project. This project uses data visualization, data analysis, and storytelling to document the gentrification and the resistance to that gentrification in the San Francisco Bay Area [6, 12].

Still, there has been little work on designing technology to help tenants facing evictions. Yet, we see how similar problem spaces, such as Hagan and Kim's work in family courts self-help centers, resonate with the design for tenants facing eviction [5]. They note that these self-help centers are "a ripe focus for a legal design approach." Our work echoes this finding and similarly found that while legal experts were eager to help people, tenants had an overall negative experience in seeking to work through the legal system.

Hagan and Kim's study found that people going through the family law courts felt a "lack of autonomy, control, or oversight" in the legal process, which contributed to why they did not complete the court processes correctly. They also noted the emotional stress and intimidation of the legal system as factors that led to court users' lower cognitive engagement. They laid out four critical factors in improving court self-help centers: developing visuals to help clients develop a mental model of the process, providing opportunities for clients to do the task without legal aid, providing modeling to help them build strategies specific to their situation, and clearly laying out their options. Through the case study, we saw many of these factors were critical in our design; we also identified how working with the legal system and legal experts brought on additional unique factors in the design process.

In the eviction space, the Massachusetts Defense of Eviction (MADE) [17] stands out as one of the few tools that assist tenants with eviction challenges. It offers Massachusetts tenants a free, self-guided resource to effectively address eviction notices. MADE inspired our early concepts, but as we aimed to create a

comprehensive eviction tool, our goals aligned with Cabral and Steenhuis's expansion on MADE, which educates tenants on how to negotiate negative housing conditions with landlords [2]. Cabral and Steenhuis observed that while there are tools to help tenants report housing issues [4, 8] and respond to an eviction notice [17], there is no widespread, accessible tool that educates tenants on how to prepare for negotiations with their landlords. Similarly, our case study identified a gap in tools that inform tenants about their rights and how to advocate for themselves during evictions.

3 CASE STUDY

As the project unfolded, the intricacies of overseeing a student service initiative became increasingly evident. In retrospect, it is clear that the project could have benefited from more comprehensive groundwork in defining the project scope with our client. This case study examines key takeaways from the experience.

3.1 Foundation

In August 2021, developer Hamsika became the initial team recruit for the project. During a brief meeting, the student team from the community-engaged design class passed on their research and design documentation. Shortly after, the first author assumed the role of the team's designer. In September 2021, the project kickoff meeting brought together the new student team, their advisor, and various AVL staff, including three attorneys and the IT manager. During this meeting, the group reached a consensus to focus on building out and developing the mockup completed by previous students, which focused on helping tenants file a response to an eviction notice in court. This initial product, intended for a Fall 2022 launch, aimed to solidify the partnership with AVL and gather tenant feedback, addressing a critical eviction stage identified by the preceding team.

During this meeting, the attorney who had been the primary liaison for the previous team announced his upcoming exit from AVL, designating Darrius Woods, the staff attorney of AVL's "Standing with Our Neighbors" program, as our key contact. This transition meant the first author would partner with Darrius on the prototype's legal content, while Hamsika worked closely with the IT manager regarding web technicalities.

Throughout the year, the first author and Darrius honed the project's direction. As Darrius served as the staff attorney of a broader housing stability initiative separate from HCAC, he envisioned the Atlanta Eviction Defense (AED), the final deliverable as a web app, to benefit a wider audience, and so there was no mention of the involvement of HCAC. His position, while related to eviction, was not on the front line dealing with tenants facing impending evictions. At this point, the student team did not have a clear understanding of the organizational structure and program initiatives within AVL, so the project's trajectory was largely shaped by what Darrius had in mind for the project. With his guidance, the first author identified the Massachusetts Defense for Eviction (MADE) [17] as a blueprint for the AED. Darrius stressed the importance of this tool being self-learned and used by tenants since HCAC's attorneys could not review responses due to capacity constraints. This required the tool to be exhaustive, educative, and consistent with standard legal vernacular.

At this juncture, the student team developed a foundational understanding of the eviction process, particularly the critical nature of timely court response filings. Figure 1 shows our understanding of the eviction process at this time.

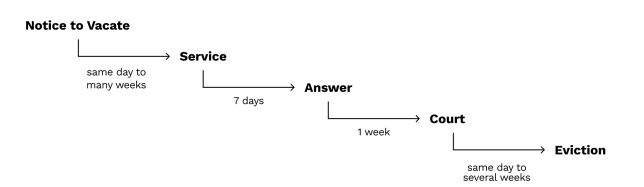


Figure 1: Eviction Process

Later in the year, another student joined the team to spearhead design, allowing the first author to delve deeper into research while delineating research from design tasks more distinctly. Our research activities included conversations with AVL F personnel, including Darrius and community managers of the “Standing with Our Neighbors” program.

In April of 2022, we conducted six concept testing sessions with AVL F community managers and tenants. We learned that many tenants, working hourly jobs, lacked the bandwidth to attend legal consultations. However, they were interested in a self-help digital tool. Some expressed concerns about the app’s complex legal language and the challenge of identifying the right defenses. In discussing with Darrius and drawing from the MADE app, the team saw the potential in using video tutorials to explain the eviction process. This feedback directed our focus toward highlighting eviction timelines and key responsibilities in the tutorials.

3.2 Standstill

In Fall 2022, our point of contact at the AVL F changed to Crystal Redd, the co-director of the Safe and Stable Homes Project. This shift required the establishment of a new working relationship, similar to the efforts made with our previous liaisons. This relationship was particularly difficult to develop, and after extensive email correspondence, we eventually connected and began planning usability tests.

Just as AVL F went through frequent changes in personnel, our student team also saw shifts. The first author remained as the project manager and researcher, but the designer position was filled by the second author. On the development side, Hamsika’s work was taken over by two new developers, who rebuilt the product using a different technical approach based on their expertise. Figure 2 provides an overview of the AVL F staff and student team involved in this project, detailing the roles within the organizations and personnel changes made on both sides during the project’s duration.

Our testing work, as a result of slowly re-established collaboration with AVL F, encountered significant challenges. Initially, the plan was to comprehensively evaluate the prototype, involving four to five tenants in individual 45-minute sessions. Additionally, the authors intended to assess the educational videos with a broader sample of 12 participants, using short on-site testing sessions. AVL F

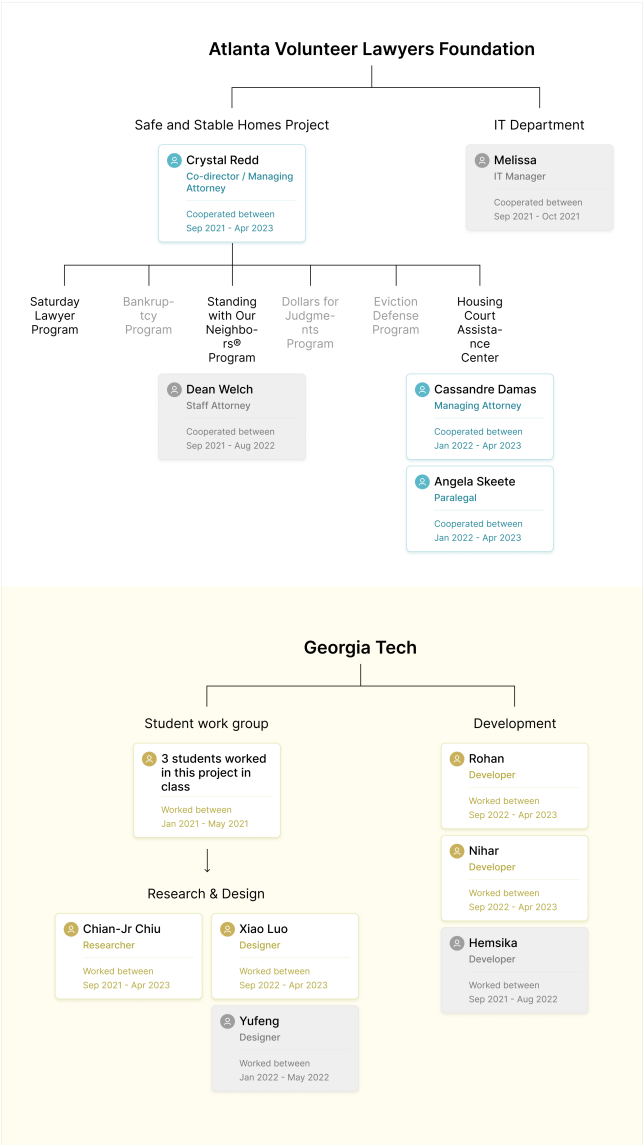


Figure 2: Organization Charts

had committed to assisting in recruiting tenants for both activities, but the process was sluggish, narrowing our access to tenants during their monthly free consultation events. During one such event, the authors set up a testing booth at the AVL F main office. Five tenants consented to review our videos after their consultation. During testing, the tenants were presented with the videos and asked to explain key information introduced in those videos. The test results showed a demand for more examples, clearer language, and digestible information.

While waiting for access to tenants, the authors conducted reviews with students studying HCI who could provide expert evaluation on the user interaction. We facilitated cognitive walkthroughs and usability studies by providing them with mock eviction notices and answer forms. The feedback from these students indicated the

AED should have less text, simpler steps, and more visual aids. This aligns with the insights gained from the video review sessions. Consequently, the authors recognized the necessity of striking a balance between legal terminology and layman's terms. We embedded legal form samples and streamlined sub-categories to aid user decisions. The second author also introduced visual cues like icons to enhance comprehension. Additionally, the authors planned to make the videos more concise. This version of our product is known as "AED 0.5."

3.3 Breakthrough

The project came full circle when in January 2023, Crystal introduced the authors to Angela Skeete, a paralegal at the HCAC. This introduction clarified for the student team which faction within AVL to collaborate with for the AED to have the most impact. Subsequently, we coordinated with Angela to attend the HCAC consultation sessions at the Fulton County Magistrate Court. Our initial intent was to acquaint ourselves with the attorneys and outline our testing plans for AED 0.5 with their clientele.

During the first visit, we met and presented our prototype to Cassandre Damas, the managing attorney of the HCAC. She emphasized gathering tenant feedback and voiced concerns over the tool's complexity and its narrow focus on court response preparations. Another volunteer attorney from HCAC echoed these sentiments, noting the convoluted nature of the eviction process and advocating for a more adaptive approach to aiding tenants in choosing legal defenses. Following this feedback, we observed the entirety of that day's consultation sessions to gain deeper insights into tenant legal support. This day proved pivotal for our project. Mere hours of observation illuminated that while responding to an eviction notice was crucial, it was but one small part of the eviction defense process.

With only two months left to finalize the project and faced with an expanded scope, the student team quickly shifted gears. We dedicated six intensive weeks at the Fulton County Magistrate Court, starting with two weeks of HCAC consultation observations and court observations, leading to a comprehensive prototype overhaul. The subsequent four weeks focused on iterative design and testing, wherein potential users evaluated the prototype while awaiting services at HCAC.

We also facilitated 30-minute informal interviews with a broad spectrum of stakeholders associated with the HCAC, which included volunteer attorneys, law students, and paralegals. These individuals shared valuable insights about the challenges of providing free legal assistance at the HCAC and the different strategies employed by attorneys.

Engaging with these multifaceted legal experts enriched our grasp of the eviction landscape and the nuances of tenant retaliation. Leveraging their collective experiences, we juxtaposed their insights with our design and research perspectives. This helped pinpoint the mismatch in expectations between the HCAC and their clients. The HCAC operates within the constraints of limited time per tenant and a primary focus on expeditious legal issue resolution. This often leads to tenants who have invested substantial time in coming to the courthouse with the expectation of receiving more comprehensive legal assistance. Recognizing this, we identified an

opportunity for the AED to bridge the gap in expectations between both parties.

Initially, under Darrius's guidance, we had a relatively simple understanding of the eviction process. However, as we conducted extensive field research and consulted with various attorneys, our understanding of the process evolved significantly. While our earlier prototype centered around assisting tenants in filing an Answer timely and properly, we soon realized that there were situations where tenants could benefit from not filing an Answer, particularly if landlords overlooked mandatory eviction procedures. In some cases, tenants inadvertently expedited their eviction process by filing an Answer when they could have taken retaliatory action by requesting a Special Appearance. This depth of understanding, made possible through immersive research and stakeholder engagement, illuminated the intricate retaliatory and self-advocacy options available to tenants. When juxtaposing the revised eviction process map and personas in Figure 3 with the initial map in Figure 1, the evolution of our understanding becomes evident, particularly concerning the various avenues for tenant retaliation and self-advocacy.

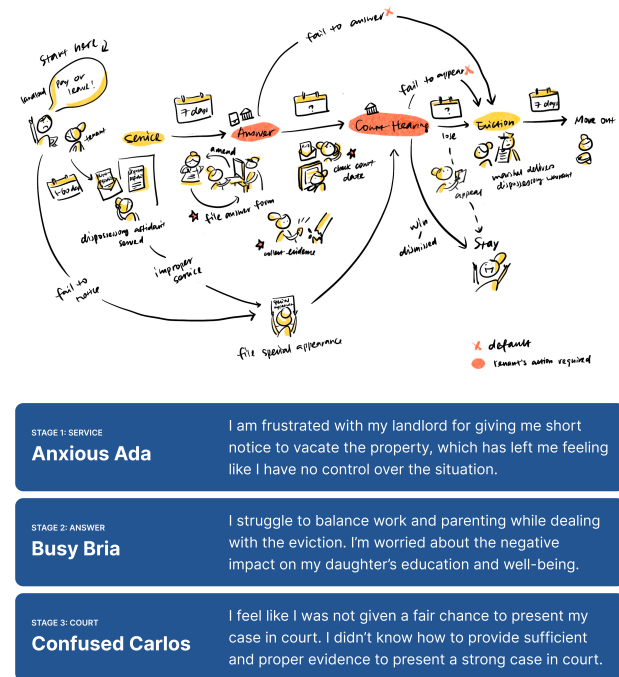


Figure 3: Revised Eviction Process and Personas

In deliberating on the content and its hierarchy within the AED, we came to recognize the importance of crafting engaging materials. This understanding was gleaned from our discussions with Anh-ton Tran, an active member of Housing Justice League (HJL), an Atlanta-based organization championing affordable housing and fighting unjust evictions. Anh-ton shared instrumental resources for curating community-centric educational materials. These insights guided our selection of graphics and verbiage, aiming to appeal to stressed

tenants seeking immediate understanding of their rights and responsibilities. A notable reference in this context is the Center For Urban Pedagogy (CUP), a New York-based organization that collaborates with people impacted by systems of power to create “easy to understand visual materials that help communities access services, claim their rights, and fight for change” [13]. Their past initiatives include designing materials for safe apartments and tenant power. We specifically focused on visual and content design, drawing inspiration on making information more digestible and human-centric. Figure 4 demonstrates our choice for intuitive graphics and a relatable narrative, geared toward simplifying complex legal language and enhancing accessibility. Additional images can be found in the supplementary materials.

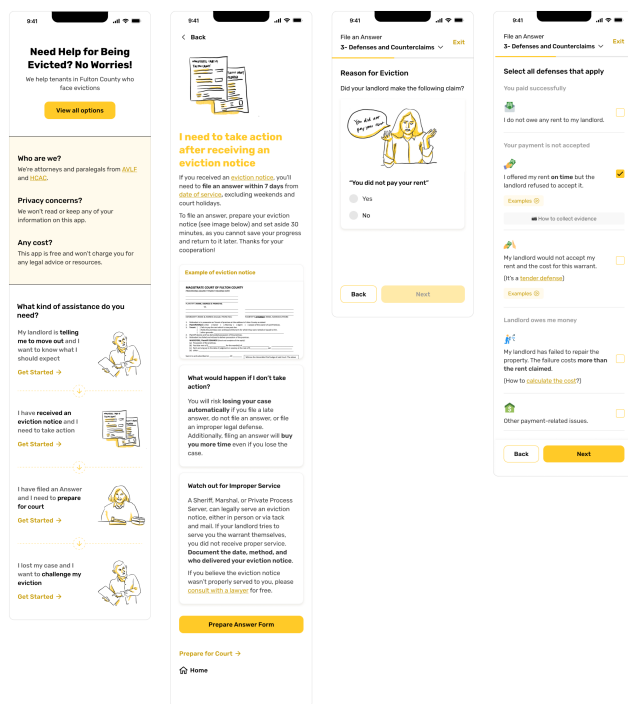


Figure 4: Screenshots of AED

Lastly, as litigants entered mediation during court sessions, we consulted with two judges from the Fulton County dispossession court. Beyond clarifying court procedures for us, they underscored the importance of informing tenants about their legal obligations and entitlements.

By immersing in the tenant journey within the court system, soliciting feedback from those in the throes of eviction, and partnering with key stakeholders, we deepened our understanding of the eviction process. This insight led to an expansion of the project scope, encompassing comprehensive legal guidance across all phases of the eviction journey.

4 FINAL USABILITY TESTING

After rigorous testing and iterations, AED 1.0 underwent final usability testing with nine participants from the target user demographic. We used a persona, “Jazmin,” representing a single mother facing housing challenges, to replicate real scenarios. While participants generally interacted effectively with the prototype, some faced difficulties in certain tasks, prompting further design suggestions. To build credibility, AED’s homepage introduced AVL and HCAC and recognized the need for continuous information updates. To address legal terminology confusion, examples of legal documents and user-friendly language were provided. Lastly, essential information was highlighted to help users stay aware of critical deadlines. For more details on the final usability testing, please see the supplementary materials.

Through rigorous testing and iterative improvements, the AED has evolved into a well-rounded resource that equips tenants with the knowledge and tools needed to understand and confidently address eviction situations. Further details on methods and findings for final usability testing can be found in the supplementary materials.

5 DISCUSSION

The process of designing the eviction defense web tool proved to be challenging in a number of ways that could inform the design of future applications that are built upon legal or expert knowledge and overlap with advocacy efforts. Future projects should: first, delve into understanding the legal space they are working with, in addition to leveraging the expert knowledge that partners bring; second, explicitly address, during the planning phase, how to navigate the needs between the attorneys and their clients; and third, manage the power dynamics between advocacy experts to establish clear expectations at the beginning of a project. For projects that involve students or volunteers, there is a constant shift in team members, and we make suggestions for setting up projects in anticipation of those changes.

5.1 Understanding Expert Space

One of the reasons that we took on this project was the partnership with AVL. All of the lawyers working or volunteering with AVL were passionate advocates for their clients who had few other resources for help in the eviction process. However, because of their expertise, we initially did not dive deeply into understanding the legal proceedings of eviction. The lawyers cautioned us that seeking to fully understand the convoluted information might be beyond the layperson. Yet the design did not take shape until we took on the role of learning the content area, which allowed us to understand where the eviction defense web tool could best serve the tenants. It also helped us address a critical design flaw. Since the project’s inception, attorneys had been requesting a tool to aid tenants in completing their Answers, with the goal of both saving time for AVL and extending assistance to a wider population. However, after fully understanding the process, we realized that the web app might inadvertently expedite the eviction process for many tenants.

When we did gain this content knowledge, it left us with a large amount of work to do with little time. Expanding on Schuler and

Namioka's work in participatory design [16], we stress the need for designers to not only involve users and stakeholders in the design process, but to actively immerse themselves in the content area as early as possible, even if experts do not think designers should or could understand. This lesson can apply to designing for legal spaces but also any area where expert knowledge has weighty consequences, such as medical advice.

5.2 Gaps Between Attorney and Client Needs

Initially, the client's needs directed this project. Since attorneys are held responsible for the legal advice they give (facing censure, litigation, or disbarment for malpractice), they are very cautious with what advice is given and how it is given. This resulted in some attorneys insisting that we use legalese, the technical form of writing used in the legal community, to ensure that legally accurate advice was given. However, legalese is difficult for most people to understand, and the tenants we worked with often had low reading literacy. The use of this highly technical language did not help them navigate their eviction process.

The attorneys, already overworked and understaffed, aimed for the web app to be comprehensive and educational, emphasizing adherence to standard legal terminology. Their ultimate goal was for the app to reduce the time attorneys spent with clients or even provide legal advice on their behalf. On the contrary, tenants facing eviction viewed their situations as unique and wanted an opportunity to share their stories. Similar to Hagan and Kim's third factor for improving court self-help centers [5], it was critical for clients to understand how to apply the rules of the legal system to their custom situation and form strategies to effectively represent themselves in a legal context. The power of storytelling for the clients is valuable to their individual cases and to building a full picture of the injustices of the housing law they live with.

5.3 Managing Power Dynamics of Advocacy Experts

An attorney at the AVLFI initiated this project, which is always a promising position for a class or student project with advocacy experts. However, with staff turnover and the complexity of the organization, we faced challenges with shifting objectives and a lack of transparency as to how the organization worked. Eventually, the large and diverse number of staff members and volunteers we worked with helped us gain an understanding of the organization and where the eviction defense web tool could serve the greatest need. We were able to lead the design with confidence to serve tenants only after gaining this larger understanding of the organization. In future projects working with advocacy groups, we recommend seeking an organizational breakdown at the beginning of the project to identify who works with the issues most relevant to our project, establish better connections, and determine how to align with the organization's goals effectively.

However, our confidence did not only come from understanding the organization. We gained knowledge both within the oversight of the AVLFI and through other organizations and connections outside of AVLFI. With AVLFI, we eventually started showing up to the courts, asking questions in these settings, gaining the respect of the attorneys and judges, and interacting much more with the tenants

facing eviction. This helped us confidently design, even when it pushed against some of our AVLFI contacts' agendas. In addition, our interactions with other advocacy groups, which looked at the eviction process in different ways, supported many of our design findings that the attorneys did not always support. We want to emphasize that while it is critical to build a trusting relationship with advocacy experts, designers and technologists should not lose sight of their own expertise, seek other expert perspectives, and be aware that, at times, these advocacy experts are also acting as gatekeepers - providing only information or contact that support their ideas of how best to serve the public. As Jasanoff [7] explores in her discussion on contested boundaries in policy-relevant science, what is deemed "relevant" or "appropriate" can be substantially influenced by such gatekeepers, thereby channeling the flow of information and potentially narrowing perspectives. This phenomenon, while not unique to advocacy, underscores the importance of critical engagement with expertise to ensure a diverse and comprehensive representation of information and resources.

5.4 Changing Personnel in Student Service Projects

One of the primary objectives of the community-engaged design class that kicked off this project was to build and sustain relationships with service organizations. The changing staff at AVLFI is typical when working with service organizations. Many involved are volunteers, and their involvement waxes and wanes based on their other commitments. For those who such organizations employ, frequently the pay is low and stress high, so they give as much time and effort as they can before moving on to other positions. In the case of a student project, it is also important to acknowledge that the students have limited time, and they naturally take different directions, complete the related course, or graduate.

We did a few things to help counteract these disruptions, such as positioning the advisor as the point of contact during any student transitions until the first author took on the project for her thesis and having group meetings when new staff at AVLFI came on. However, we now see that a better understanding of the organization and setting up expectations of redundancy in the partnership might have helped us navigate these changes better. One method for this would have been to lay out a contract as one would with paying partners, highlighting expectations and outputs on both sides. The contract would hold our partners accountable with redundant contacts in case one person leaves, and it would also highlight for students the longer-term responsibility of taking on service projects.

6 CONCLUSION

Navigating eviction procedures in Atlanta revealed a intricate interplay between legal standards and tenant advocacy. Our collaboration with AVLFI highlighted challenges inherent in merging expert knowledge with advocacy-driven designs. Firstly, our journey underlined the importance for designers to acquire deep content knowledge even when working alongside experts in a given field. Our proactive immersion in the eviction processes led us to identify and rectify a critical design flaw. This understanding is imperative, particularly when designing in areas with high-stakes

consequences like eviction or medical decisions. Secondly, our study illuminated the intricacies of striking a balance between the attorneys' use of precise legal language and ensuring that tenants, especially those with low literacy, could comprehend the information. This dichotomy between legal accuracy and user comprehensibility is not only a design challenge but also an ethical one. Managing power dynamics, particularly with advocacy experts, emerged as a third significant learning. While the initial support from AVLf promised a smooth collaboration, the evolving objectives and lack of organizational clarity led us down a path of seeking broader engagement both within and outside the organization. This experience underscored the importance of not only understanding the internal dynamics of partnering organizations but also of maintaining an independent and diverse perspective as designers. Lastly, as with many student-driven or volunteer projects, the flux in team members posed its own challenges. However, this highlighted the necessity for establishing clear expectations, structures, and redundancies early in the project, to navigate the ebb and flow of participants.

In retrospect, while the journey of designing the eviction defense web tool was rife with challenges, it has provided rich learnings, informing future design endeavors at the intersection of law, advocacy, and technology. As the HCI field continues to evolve and intersect with domains like law and medicine, where expert knowledge has weighty consequences, the lessons from our case study can serve researchers and designers, guiding them toward more informed, user-centric, and effective solutions.

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